

		The Court declines to rule on LaTreill’s objections as immaterial to the disposition of this motion. (Code Civ. Proc. § 437c(q)). Moving party to give notice.
112	O'Mary vs. City of Tustin 24-01442068	Motion for Summary Judgment and/or Adjudication Defendant, City of Tustin (“Tustin”), moves for an order granting summary judgment in favor of the Tustin as to Plaintiff, Elisa Jill O’Mary’s Complaint. The Motion for Summary Judgment is DENIED. Tustin contends that the uplift in the sidewalk in front of the property located at 16661 McFadden Avenue (“Subject Sidewalk”) which was raised at a range between 0.81 inches to 1.15 inches is a trivial defect as a matter of law such that Plaintiff cannot show that Tustin had a duty to remedy the uplift in the Subject Sidewalk. Tustin also contends that there was nothing in the Subject Sidewalk that aggravated the uplift or otherwise made it unreasonably dangerous to a person using due care, and that Plaintiff has not identified or pleaded any aggravating conditions of the Subject Sidewalk, and may not attempt to create issues that were not alleged in the Complaint. Government Code section 835 “. . . ‘expressly authorizes two different forms of dangerous conditions liability: an act or omission by a government actor that created the dangerous condition (§ 835, subd. (a)); or, alternatively, failure “to protect against” dangerous conditions of which the entity had notice (id., subd. (b)).’ [Citation.]” (Kabat v. Department of Transportation (2024) 107 Cal. App. 5th 651, 660.) “The phrase ‘protect against’ includes ‘warning of a dangerous condition.’ § 830, subd. (b).)” (Ibid.) “To establish liability under section 835, a plaintiff must show: ‘(1) “that the property was in a dangerous condition at the time of the injury”; (2) “that the injury

	was proximately caused by the dangerous condition”; (3) “that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred”; and (4) either (a) that a public employee negligently or wrongfully “created the dangerous condition” or (b) that “[the] public entity had actual or constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” ’ [Citation.]” (Tansavatdi v. City of Rancho Palos Verdes (2023) 14 Cal.5th 639, 653.) “A ‘ “[d]angerous condition” means a condition of property that creates a substantial . . . risk of injury when such property . . . is used with due care in a manner in which it is reasonably foreseeable that it will be used.’ [Citation.] The plaintiff is required to establish only ‘that the condition . . . creates substantial risk of harm when used with due care by the public generally’ [Citation.]” (County of San Diego v. Superior Court (2015) 242 Cal.App.4th 460, 467.) Trivial Defect “It is well-settled that landowners are ‘not liable for damages caused by a minor, trivial or insignificant defect in property.’ [Citation.] In the context of sidewalk defect cases, landowners ‘do[] not have a duty to protect pedestrians from every sidewalk defect that might pose a tripping hazard—only those defect that create a substantial risk of injury to a pedestrian using reasonable care.’ [Citations.]” (Miller v. Pacific Gas and Electric Company (2023) 97 Cal.App.5th 1161, 1166 (“Miller”).) The trivial defect doctrine is not an affirmative defense but an aspect of duty that a plaintiff must plead and prove, and it applies where liability is alleged against both governmental entities and private landowners. (Ibid.) Government Code section 830.2 states: “A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the
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		evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.” (Gov. Code, § 830.2.) To establish a dangerous condition, a plaintiff must allege and prove at least one physical characteristic of the property that is defective and foreseeably endangers users of the property. (Bonanno v. Central Contra Costa Transit Authority (2003) 30 Cal.4th 139, 148-151.) A condition is “not dangerous” if “the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property . . . was used with due care . . . ’ in a reasonably foreseeable manner. [Citation.]” (Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1103-1104 (“Huckey”).) The trial court may determine whether a given walkway defect was trivial as a matter of law in appropriate cases. (Huckey, supra, 37 Cal.App.5th at p. 1104.) Where reasonable minds can reach only one conclusion, that there was no substantial risk of injury, the issue is question of law. (Ibid.) “If, however, the court determines that sufficient evidence has been presented so that reasonable minds may differ as to whether the defect presents a substantial risk of injury, the court may not conclude that the defect is trivial as a matter of law. [Citation.]” (Id. at pp. 1104-1105.)
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		“The court’s analysis of whether a walkway defect is trivial involves as a matter of law two essential steps. ‘First, the court reviews the evidence regarding type and size of defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors [bearing on whether the defect presented a substantial risk of injury]. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law’ [Citation.]” (Huckey, <i>supra</i>, 37 Cal.App.5th at p. 1105.) “California does not classify defects as trivial or substantial according to a tape measure test—the mere depth or height of the defect in comparison to the rest of the sidewalk. Instead, courts look to the totality of the circumstances which include: (1) the physical characteristics of the defect (i.e., size, jagged edges, broken pieces, exposed rebar), (2) the setting (lighting, weather, other factors affecting visibility), and (3) history (plaintiff’s familiarity with the area, any previous injuries attributable to the defect) . . . “ (Lechler v. City of San Francisco (1998) 65 Cal.App.4th 523.) “Whether a particular sidewalk defect is trivial and nonactionable may be resolved as a matter of law using a two-step analysis. [Citation.]” (Miller, <i>supra</i>, 97 Cal.App.5th at p. 1167.) “First, we review the evidence of the size and nature of the defect.” (Ibid.) “If that analysis supports a finding of a trivial defect based on its physical characteristics, we then consider whether the defect was likely to pose a significant risk of injury because there was evidence that the conditions of the walkway surrounding the defect or the circumstances of the accident ‘ma[de] the defect more dangerous than its size alone would suggest.’ ” (Ibid.) “If the evidence of additional factors does not indicate the defect was
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sufficiently dangerous to a reasonably careful person, we deem the defect trivial as matter of law.” (Ibid.)

The Court of Appeal in Miller (First District, Division 3) noted that one Court of Appeal in Stack v. City of Lemoore (2023) 91 Cal.App.5th 102 (Fifth District) “recently rejected this two-step analysis and used ‘a holistic multi-factor framework for assessing triviality’ as a matter of law, holding that ‘the size of the defect is but one of the many circumstances to be considered; however, size remains the ‘most important’ of the dangerous condition factors.’” (Miller, supra 97 Cal.App.5th at p. 1167.)

The Fifth District in Stack v. City of Lemoore (2023) 91 Cal.App.5th 102 acknowledged that Huckey v. City of Temecula (2019) 37 Cal.App.5th 1092, 1107 held that “[s]idewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law” and that Stathoulis v. City of Montebello (2008) 164 Cal.App.4th 559, 567 noted that “[s]everal decisions have found height differentials of up to one and one-half inches trivial as a matter of law.” (Stack v. City of Lemoore (2023) 91 Cal.App.5th 102, 113.) The court in City of Lemoore stated, however, that “[t]his dictum in Huckey and Stathoulis exaggerates the generally accepted size range of defects deemed trivial” and “[t]he more accurate encapsulation is that ‘when the size of the depression begins to stretch beyond one inch the courts have been reluctant to find that the defect is not dangerous as a matter of law,’ i.e., that it is minor or trivial.” (Ibid.) In the “holistic multifactor framework, the size of the defect is but one of the many circumstances to be considered; however, size remains the “most important” ’ of the dangerous condition factors. [Citations.]” (Id. at p. 114 [finding that the minimum one and three-quarter-inch height differential of the defect weighed heavily against finding the sidewalk condition trivial as a matter of law as the height was “nearly double the one-inch threshold where

courts grow reluctant to take the issue from the jury,” and that “the height of this defect will require a strong showing of other circumstances that made it not dangerous despite its height”].) “Beyond size, additional factors courts typically consider in assessing a sidewalk condition’s triviality as a matter of law are: the nature and quality of the defect (including whether it has jagged breaks or cracks); whether anything was obstructing or concealing the defect (for instance, an object, debris, or other substance); the lighting and weather conditions at the time of the incident; whether the defect has caused other accidents; and plaintiff’s familiarity with the area.” (Id., at p. 115.)

Here, the Complaint asserts a claim for dangerous condition of public property against Tustin. It is alleged that Plaintiff was walking on the sidewalk in front of 16661 McFadden Avenue, Tustin, California 92780 (“Premises”) when she tripped on a piece of cracked and raised sidewalk and fell to the ground. (Complaint, at p. 5, Prem. L-1.) It is alleged that “Plaintiff contends that the cracked and raised sidewalk at the Premises constituted a dangerous condition for lack of maintenance, repair, inspection, training, warning and/or supervision that injured Plaintiff.” (Ibid.)

It is undisputed that the uplift in the Subject Sidewalk was raised at a range between 0.81 inches to 1.15 inches. (Plaintiff’s Separate Statement (“PSS”), 7.) Plaintiff asserts no valid objection to the declaration of Tustin’s reconstruction expert, Elvis Desai, MSME, ACTAR, who reached this measurement to a reasonable degree of scientific probability based on his review and consideration of the evidence including photos of the Subject Sidewalk and the deposition transcript of Elisa Jill O’Mary, scientific literature, published test data, and the expert’s education, training, background, and experience. (Ex. 5 to Tustin’s Compendium of Evidence (“Tustin’s COE”), Declaration of Elvis Desai, MSME, ACTAR, ¶¶ 2-13, Exs. 1-6.) Plaintiff asserts that the measurement is

		disputed, but provides no evidence creating a triable issue of material fact as to the size of the uplift. (PSS, 7.) While the height of the uplift in the Subject Sidewalk, itself, may be trivial, it is not simply the uplift that is at issue, but the crack, and its size and irregularity, in the Subject Sidewalk. The photographs of the alleged defect in the Subject Sidewalk demonstrate that the crack is large, extending the entire width of the sidewalk, and is irregularly shaped. Tustin does not address these other physical characteristics of the alleged defect, namely, the size or shape of the crack. (See Ex. 5 to Tustin’s COE, Exs. 2-3 to Desai Decl.”) Where a moving parties’ separate statement does not address a material fact in the complaint, it does not assert a prima facie case of entitlement to summary judgment and does not shift the burden to plaintiff to file an opposing separate statement. (Teselle v. McLoughlin (2009) 173 Cal.App.4th 159, 160.) “A summary judgment may not be granted when the moving party has failed to ‘refute [a] tenable pleaded theor[y].’ [Citation.]” (Id. at pp. 161-162.) By failing to address the allegation that the Subject Sidewalk was cracked, Tustin fails to meet its initial burden. “ ‘[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.’ [Citation.] ‘[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.’ [Citation.]” (Nicoletti v. Kest (2023) 97 Cal.App.5th 140, 143–144.) The court is prohibited from granting summary judgment when the moving
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	party has not met its initial burden of proof. (Thatcher v. Lucky Stores, Inc. (2000) 79 Cal.App.4th 1081, 1085-1086 [finding that unless the moving party has met its initial burden of proof, the court does not have discretion under subdivision (b) of section 437c to grant summary judgment based on the opposing party's failure to file a proper separate statement].) Additionally, whether or not the Court considers the opinions of Plaintiff's expert, the photographs of the alleged defect themselves create a triable issue of material fact as to whether the defect was trivial. "[R]egardless of whether a witness can be found to opine on the subject of a dangerous condition, the court must independently evaluate the circumstances." (Caloroso v. Hathaway (2004) 122 Cal.App.4th 922, 928 [finding that "expert testimony and photographs regarding the size and shape of the crack do not create a triable issue whether there was a substantial risk of injury"].) In determining a motion for summary judgment, the court is "required to view the evidence and the reasonable inferences therefrom in the light most favorable to the party opposing the summary judgment motion; doubts as to whether there are any triable issues must be resolved in favor of the opposing party; and equally conflicting evidence or inferences require denial of a summary judgment motion." (Essex Ins. Co. v. Heck (2010) 186 Cal.App.4th 1513, 1522.) Applying a holistic multi-factor framework, the nature and qualify of the defect renders the uplift more dangerous. The crack is large spanning the entire width of the Subject Sidewalk and is irregularly shaped. " 'Where the evidence presented by defendant does not support judgment in his favor, the motion must be denied without looking at the opposing evidence, if any, submitted by plaintiff.' [Citations.]" (Hawkins v. Wilton (2006) 144 Cal.App.4th 936, 940.) Tustin's Objections to Evidence
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		Tustin objects to portions of the Declaration of Alex Zaretskiy, P.E., CXLT (Plaintiff's expert). The Court SUSTAINS Objection Nos. 1, 2, 3, 5, 6, 7, 8, and 9. The Court OVERRULES Objection No. 4. Plaintiff to give notice.
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